



## **CHAPTER xvii.**

An Act to confer upon the Ecclesiastical Commissioners and other persons powers with reference to the churchyards appurtenant to the church of All Hallows Lombard Street in the city of London to provide for the extinguishment of rights of way and other rights over or in respect of certain lands to empower the said Commissioners to sell the said lands and for other purposes.

[25th May 1939.]

**W**HEREAS pursuant to a scheme dated the seventh day of November one thousand nine hundred and thirty-five prepared by the Ecclesiastical Commissioners (hereinafter referred to as "the Commissioners") under the Union of Benefices Acts 1860 and 1898 and ratified by an Order of His Majesty in Council dated the twenty-third day of April one thousand nine hundred and thirty-seven the benefice of Saint Edmund the King with Saint Nicholas Acons and the benefice of All Hallows Lombard Street with Saint Benet Gracechurch Saint Leonard Eastcheap and Saint Dionis Backchurch in the city of London were united into one benefice and such union took effect as from the eighteenth day of May one thousand nine hundred and thirty-seven:

23 & 24 Vict.  
c. 142.  
61 & 62 Vict.  
c. 23.

And whereas it was provided by the said scheme that upon the said union taking effect the church of



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All Hallows Lombard Street should be taken down and the materials and site thereof together with any ground annexed thereto and necessary for the use and enjoyment thereof should be sold and disposed of subject to certain of the provisions of the Union of Benefices Act 1860 and the said scheme makes provision with regard to the application of the proceeds of such sale and disposal:

And whereas by virtue of the last-mentioned Act the property for the pulling down and sale of which provision was made by the said scheme became absolutely vested in the Commissioners upon the said Order in Council coming into operation and the freehold of all lands and hereditaments (other than the said property) previously vested in the respective incumbents of the benefices constituting the said united benefice became vested in the incumbent for the time being of the united benefice:

And whereas there are appurtenant to the said church two churchyards respectively situate on the northern and southern sides thereof which churchyards were closed for burials by an Order in Council of Her late Majesty Queen Victoria dated the eighth day of August one thousand eight hundred and fifty-three and together with an entrance or way leading from Lombard Street to the churchyard on the southern side of the said church are vested in the incumbent for the time being of the said united benefice while the entrance or way leading from Gracechurch Street to the churchyard on the northern side of the said church is vested in the Commissioners :

And whereas the site of the said church and of the ground annexed thereto which is vested in the Commissioners as aforesaid cannot be utilised and developed to the best advantage otherwise than in conjunction with the said churchyards and entrances or ways and certain neighbouring lands including the site of a public passage or way known as Ball Alley the whole of which area is hereinafter referred to as "the entire area" :

And whereas Barclays Bank Limited (hereinafter referred to as "the bank") are the owners of or have



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contracted to purchase the property adjoining all sides of the several parts of the entire area :

And whereas it has been agreed between the Commissioners and the bank that subject to any necessary arrangements being made with the mayor and commonalty and citizens of the city of London and with the incumbent of the said united benefice and subject to the provisions of this Act the Commissioners will sell to the bank the entire area and it is expedient that the provisions contained in this Act with reference to such sale should be enacted :

And whereas it is expedient that the Commissioners on the one hand and the said mayor and commonalty and citizens and the incumbent of the said united benefice or either of them on the other hand should be empowered to enter into and carry into effect such agreements and arrangements as are referred to in this Act :

And whereas it is expedient that such provisions as are contained in this Act with respect to the stopping up of the said passage or way known as Ball Alley and the vesting of the site thereof in the Commissioners and the closing of the said churchyards and the extinguishment of rights of way and other rights over or in respect of the said passage or way and churchyards and the entrances or ways leading thereto and the removal from the said churchyards of any human remains interred therein should be enacted :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas a plan showing the lands over or in respect of which rights of way and other rights may be extinguished under the powers of this Act and which may be dealt with as provided by this Act and a book of reference to such plan containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands and describing the same have been deposited with the



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clerk of the county council of the administrative county of London:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.     1. This Act may be cited as the All Hallows Lombard Street Act 1939.

Incorporation of certain provisions of Lands Clauses Acts.  
8 & 9 Vict.  
c. 18.

2. The Lands Clauses Acts (so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Act) are hereby incorporated with this Act except—

- (a) the provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement ;
- (b) the provisions of the said Act of 1845 with respect to the entry upon lands by the promoters of the undertaking; and
- (c) sections 127 to 133 (both sections inclusive) of the said Act of 1845 :

Provided that in and for the purposes of this Act the expression “the promoters of the undertaking” used in the Lands Clauses Acts shall mean the Commissioners.

Interpretation.

3. In this Act unless the subject or context otherwise requires—

“the Commissioners” means the Ecclesiastical Commissioners;

“the corporation” means the mayor and commonalty and citizens of the city of London acting by the mayor aldermen and citizens of that city in common council assembled ;

“the city” means the city of London ;

“the church” means the church of All Hallows Lombard Street in the city ;



“ the churchyards ” means—

(a) the area of land in the city containing one hundred and twenty-three square yards or thereabouts adjoining the northern side of the church and formerly used or appropriated for use for burials together with the entrance or way leading to the said land from Gracechurch Street; and

(b) the area of land in the city containing two hundred and twenty-three square yards or thereabouts adjoining the southern side of the church and formerly used or appropriated for use for burials together with the entrance or way leading to the said land from Lombard Street.

4.—(1) The Commissioners and the corporation may enter into and carry into effect agreements for and with respect to the acquisition by the Commissioners of all the estate rights and interests of the corporation in or in connection with the passage or way leading from Lombard Street to George Yard in the city and known as Ball Alley and the site and soil of that passage or way. Stopping  
up of Ball  
Alley.

(2) At any time after the acquisition by the Commissioners of all such estate rights and interests as aforesaid they may stop up the said passage or way and thereupon all rights of way over the same and other rights in respect thereof shall be extinguished and the site and soil thereof shall vest in the Commissioners. Provided that the said passage or way shall not be stopped up unless the Commissioners are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree :

Provided also that the Commissioners shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.



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Purchase  
of church-  
yards by  
Commis-  
sioners.

**5.—**(1) The incumbent of the united benefice of Saint Edmund the King and Saint Nicholas Acons with All Hallows Lombard Street Saint Benet Gracechurch Saint Leonard Eastcheap and Saint Dionis Backchurch in the city and the Commissioners may enter into and carry into effect agreements for and with respect to the sale by the said incumbent and the purchase by the Commissioners of the churchyards or either of them for such price or consideration and upon and subject to such terms and conditions as may be agreed upon between the said incumbent and the Commissioners.

(2) The said incumbent shall apply the proceeds of any sale under the provisions of this section (after deducting any costs and expenses incurred by him in connection with such sale) as follows :—

(a) He shall pay to the parochial church council of the said united benefice such proportion thereof as shall be determined by agreement between that council and the Commissioners; and

(b) He shall pay to the Commissioners the balance thereof.

(3) All moneys paid to the said parochial church council under subsection (2) of this section together with any interest from time to time accruing from the investment of the said moneys or any part thereof shall be applied by them to parochial purposes of the said united benefice including repairs to the church thereof or to any parish hall provided in connection therewith.

(4) All moneys paid to the Commissioners under subsection (2) of this section shall be added to and form part of the aggregate fund which pursuant to clause 3 of Part V of the scheme referred to in the preamble to this Act is to be formed of the net proceeds to arise from the sale or sales directed by that scheme to be made.

Closing and  
extinguish-  
ment of  
rights  
affecting  
the church-  
yards.

**6.—**(1) At any time after the completion of the purchase by the Commissioners pursuant to the section of this Act of which the marginal note is "Purchase of churchyards by Commissioners" of the churchyards or either of them the Commissioners may close the



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churchyards or churchyard so purchased and thereupon all rights of way over the same and other rights in respect thereof except such rights of light (if any) as Barclays Bank Limited may have over the same shall be extinguished :

Provided that the Commissioners shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(2) The churchyards shall in the hands of the Commissioners be freed and discharged from all trusts uses obligations disabilities and restrictions whatsoever theretofore attaching thereto under ecclesiastical law or otherwise and from all rights and interests of the owners of any graves therein and from all other trusts uses obligations disabilities and restrictions whatsoever theretofore attaching to the churchyards by reason of their being disused burial grounds or forming part of the churchyards or enclosures of the church or otherwise.

7. The Commissioners may after they shall have become possessed of the churchyards or either of them and of the site and soil of the said passage or way known as Ball Alley sell the same to such persons for such purposes and upon and subject to such terms and conditions as the Commissioners may think fit and the churchyards or churchyard so sold shall in the hands of the purchaser thereof and his successors in title or persons claiming through or under him be freed and discharged from all such trusts uses obligations disabilities restrictions rights and interests as are referred to in the section of this Act of which the marginal note is "Closing and extinguishment of rights affecting the churchyards."

Power to  
Commis-  
sioners to  
sell certain  
lands.

8.—(1) Before the completion of the sale by the Commissioners to any other party of the churchyards or either of them or of any part of any such churchyard the Commissioners shall remove or cause to be removed from the property so sold the remains of all deceased persons interred therein.

Removal of  
human  
remains  
from  
church-  
yards.



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(2) Before proceeding to remove any such remains the Commissioners shall publish a notice for three successive days in two newspapers circulating in the city to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the property proposed to be sold may give notice in writing to the Commissioners of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the lord bishop of the diocese of London to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Commissioners that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of London who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of fifteen pounds) shall be defrayed by the Commissioners such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Commissioners in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the said bishop the Commissioners may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which



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burials may legally take place as the Commissioners think suitable for the purpose subject to the consent of the said bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Commissioners be removed and re-erected at the place of re-interment of such remains or at such place as the said bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Commissioners and the Commissioners shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

9. All objects of geological or antiquarian interest discovered within or under the churchyards or either of them during the execution of any works therein shall subject to the rights of the Crown be carefully preserved and removed and shall be deposited in the Guildhall Museum as the property of the corporation and the corporation shall during the execution of any such works have power to enter and inspect such works for the purposes of this section. Deposit of  
objects of  
interest.

10. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners who may apply for that purpose the proceeds of any sale effected by them under the provisions of this Act. Costs of  
Act.

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